

18STCV07984 18STCV07984

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Case Number: 18STCV07984 Hearing Date: August 4, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

LOU BAYA OULD ROUIS, et al.,

Plaintiffs,

vs.

THE REGENTS OF THE UNIVERSITY OF
CALIFORNIA,

Defendant.

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CASE NO.: 18STCV07984

[TENTATIVE] ORDER GRANTING IN PART PLAINTIFFS'
MOTION TO TAX COSTS

Dept. 506

8:30 a.m.

August 4, 2026

On

March 9, 2026, a jury returned a verdict in favor of Defendant The Regents of the University of California and against Plaintiffs Lou Baya Ould Rouis and Ali Ould Rouis. The Court entered judgment on March 26, 2026.

On

April 10, 2026, Defendant filed a verified memorandum of costs ("Memo Costs"). On April 23, 2026, Plaintiffs filed a motion to strike or tax costs.

DISCUSSION

If

a plaintiff rejects a defendant's settlement offer under Code of Civil Procedure section 998 and the plaintiff fails to obtain a more favorable judgment, the plaintiff may not recover his post-offer costs and must pay the defendant's costs from the time of the offer. (Code Civ. Proc., § 998, subd. (c)(1).) These costs may include the

defendant's reasonable costs for expert witnesses, including expert witnesses who are not court-ordered. (Ibid.; Chaaban v. Wet Seal, Inc. (2012) 203 Cal.App.4th 49, 55.)

On

September 7, 2021, Defendant made settlement offers of \$225,000 to Lou Baya and \$25,000 to Ali under Code of Civil Procedure section 998. (Opposition, Exs. 1-2.) Plaintiffs did not accept the offers within 30 days and recovered nothing at trial, entitling Defendant to its actually incurred and reasonably necessary costs for the services of expert witnesses in preparation for trial. (See Code Civ. Proc., § 998, subds. (b)(1), (c)(1).)

“A

‘verified memorandum of costs is prima facie evidence of the propriety’ of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.”

(Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 (Adams).) “[I]f the correctness of the memorandum is challenged

either in whole or in part by the affidavit or other evidence of the contesting party, the burden is then on the party claiming the costs and disbursements to show that the items charged were for matters necessarily relevant and material to the issues involved in the action.” (Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co. (1963) 217 Cal.App.2d 678, 699 (Oak Grove).)

A. Filing and Motion Fees

Plaintiffs

move to strike \$2,558.86 in filing and motion fees because they are electronic filing fees already counted in Item 14, process-server fees duplicative of Item 5, and courtesy-copy delivery costs that are not recoverable. (Motion at p. 2.) Defendant's memorandum of costs shows that these costs are not duplicative and are separately categorized. (Memo Costs, Ex. 3.)

Defendant

agrees to reduce its electronic filing fees to \$326.00, from the \$349.50 sought in Item 14. (Opposition at p. 8.) Accordingly, the Court deducts \$23.50.

B. Deposition and Records-Subpoena Costs

Of

the \$42,025.07

in deposition costs (Item 4), Plaintiffs argue that “only \$12,931.31 in witness deposition costs and \$709.60 in records-subpoena costs are potentially recoverable, for a total of \$13,641.27.”

(Motion at p. 2.)

Plaintiffs

contend, without citing authority, that “[r]ush charges are not recoverable absent a showing of necessity, such as a court-ordered deadline.” (Motion at p. 3.) Defendant explains that Plaintiffs’ objections and cancellations delayed the depositions until January 2026 and February 2026, “meaning that the depositions took place so close to the trial date that transcript expedited charges were necessary.” (Opposition at p. 10; Evenstad Decl. ¶ 8.)

Plaintiffs

contend that “[c]harges for production, video-related services, and Zoom setup exceed the statutory allowance and reflect convenience rather than necessity,” and the video recordings were not necessary.

(Motion at p. 3.) But Defendant

is entitled to recover the costs of “[t]aking, video recording, and transcribing necessary depositions.”

(Code Civ. Proc., § 1033.5, subd. (a)(3)(A).)

Plaintiffs

contend that the per-page rates for Plaintiffs’ depositions “far exceed reasonable 2021 benchmarks (~\$4.25/page).”

(Motion at p. 3.) As Defendant

argues, this rate is arbitrary, fails to take into account charges for exhibits attached to a transcript, and is not relevant to depositions taken in 2025 and 2026. (Opposition at p. 10.)

Plaintiffs

move to strike the costs of a transcript of a non-court-ordered Final Status Conference. (Motion at p. 3.) Defendant clarifies that its spreadsheet “simply reflects charges appearing in Defendant’s invoices . . . Defendant does not request recovery for this transcript.”

(Opposition at p. 10.)

Finally,

Plaintiffs argue that “Evidence Code §1563(b) strictly limits recoverable costs for business-records subpoenas,” and Defendant’s costs exceed what is

allowed. (Motion at pp. 3-4.) Defendant observes that “this Code section simply provides a non-exhaustive list of what may be deemed reasonable costs with respect to a subpoena duces tecum,” and it “does not state that the enumerated costs are the only costs that are reasonable or recoverable.” (Opposition at p. 9; see Evid. Code, § 1563, subd. (b)(1) [“‘Reasonable costs,’ as used in this section, includes, but is not limited to, the following specific costs . . .”].)

Plaintiffs

have not provided evidence that these items were improperly included. (See Oak Grove, *supra*, 217 Cal.App.2d at p. 699.) Accordingly, the Court does not deduct any of these costs.

C. Service of Process

Plaintiffs

observes that Defendant “claims \$718.86 but attaches invoices totaling \$1,790.76. They are strictly limited to the memorandum amount of \$718.86.”

(Motion at p. 4.) Defendant does not claim \$1,790.76. Plaintiffs also argue that there is no proof of actual service and no invoices. The cost memorandum is *prima facie* evidence of the propriety of the items. (Adams, *supra*, 199 Cal.App.4th at p. 1486.)

Nevertheless,

Defendant provides a more detailed accounting of these costs, and they are recoverable. (Opposition, Ex. 6.)

D. Expert Costs

Plaintiffs

argue that “[t]he invoices here largely reflect preparation, consulting, travel, and administrative work rather than recoverable testimony time,” and \$145,753.13 should be deducted. (Motion at p. 4.)

1. Alan

Shabo

Plaintiffs

move to strike \$32,811.75 of \$36,411.75 for Dr. Shabo, conceding only his

actual trial testimony time and the time to conduct the IME. (Motion at pp. 4-5.)

Defendant

attached invoices and correspondence from Dr. Shabo that detail his time reviewing records in preparation for his testimony. (Memo Costs, Ex. 8.) Plaintiffs argue that his preparation time consisted of “non-recoverable consulting activities.” (Motion at p. 5.)

“[R]ecovery

of expert witness fees under Code of Civil Procedure section 998 is not limited to actual time consumed in examination.

[Citation.] The reference to

Government Code section 68092.5 in section 998, subdivision (h) is interpreted to mean that any fees charged for trial time must not exceed the expert’s normal rate.” (Michelson v. Camp (1999) 72 Cal.App.4th 955, 975-976 (Michelson).)

The

Court finds that these costs are reasonable and recoverable.

2. Scott

Grover

Plaintiffs

move to strike \$29,190.80 for Dr. Grover.

(Motion at pp. 5-6.) These costs

include recoverable preparation and administrative time. (See Michelson, supra, 72 Cal.App.4th 955, 975-976.)

Plaintiffs

argue that Dr. Grover’s fees “Are Disproportionate to Regents’ Ophthalmology Expert,” and his \$1,600 flat “half-day” trial testimony fee is unsupported. (Motion at p. 6.) The Court finds that these rates are reasonable.

Plaintiffs

argue that Dr. Grover’s travel-related and cancellation charges arise from Defendant’s litigation choices and failure to give proper notice. (Motion at p. 6.) According to Plaintiffs, the IME cancellation fee is due to Defendant’s “failure to provide Code-compliant notice under CCP §§ 2032.220, 2032.320; Plaintiff preserved her rights and confirmed non-appearance September 9; the IME proceeded September 12. Plaintiff should not bear charges stemming from Regents’ failure to follow the code on notice.”

(Ibid.) Plaintiffs also
object to the costs for Lou Baya to travel for the IME. (Motion at p. 13.)

On
July 31, 2025, the Court ordered the parties to “meet and confer to set dates
for those examinations between August 18, 2025 and September 12, 2025.” On September 4, 2025, Plaintiffs’ counsel
demanded that the IMEs occur on September 9 or 10, yet Plaintiffs cancelled the
day before the exam. (Evenstad Decl. ¶
13 & Ex. 10.) The Court finds that
all of these costs are reasonable.

Finally,
Plaintiffs note that Dr. Grover’s bill includes \$800 for his deposition, but
Plaintiffs already paid this charge when the deposition was taken. (Motion at pp. 5-6.) Defendant’s Opposition does not
address
this. Accordingly, the Court deducts
\$800.00.

3. Scott
Schroeder

Plaintiffs
move to strike all costs for Dr. Schroeder.
(Motion at pp. 7-9.) According to
Plaintiffs, Defendant “cannot show a clear nexus between Dr. Schroeder’s actual
opinions and the material liability issues of dangerous condition and
foreseeable risk of injury.” (Id.
at p. 8.) Not so. (See Opposition at p. 13.) Dr. Schroeder’s preparation time is also
recoverable. (See Michelson, supra, 72
Cal.App.4th 955, 975-976.)

The
Court finds that all of these costs are reasonable.

4. Christian Wuthrich

Plaintiffs
move to strike all costs for Dr. Wuthrich.
(Motion at pp. 9-11.) As with Dr.
Schroeder, Plaintiffs’ disagreement with the substance of his testimony does

not mean his testimony was unnecessary, and his preparation costs are recoverable. (See Opposition at p. 13.)

5. Jack

Deihl and Andrew Woo

Plaintiffs

move to strike all costs for these witnesses because they were not deposed and did not testify at trial. (Motion at pp.

11-12.) An expert need not testify at

trial, and Plaintiffs “present[] no evidence to support an argument that

[their] expertise was not reasonably necessary to prepare for trial.” (Doe v. Los Angeles County Dept. of Children & Family Services (2019) 37 Cal.App.5th 675, 695.)

E. Models and Exhibits

Plaintiffs

argue that \$4,410.00 paid to Cogent Legal Consulting LLC for “Trial Graphics + Video Editing” was merely convenient or beneficial and not necessary. (Motion at p. 12.)

The

Court agrees and deducts \$4,410.00.

CONCLUSION

The

motion to tax costs is GRANTED IN PART.

The Court strikes \$23.50 in electronic service fees, \$800.00 for Dr.

Grover, and \$4,410.00 for trial graphics/videos.

The

Court awards Defendant \$213,942.59 in costs (\$219,176.09 minus \$5,233.50).

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

 indicating intention to submit. If all parties in the case submit on the

tentative ruling, no appearances before the Court are required unless a

companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 4th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court